

Law Offices of Jason A. Steinberger, LLC
(JAS 6249)
Attorney for Plaintiff
910 Grand Concourse, Suite 1C
Bronx, NY 10451
(718)585-2833

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
PATRICK NICHOLS

Plaintiff

15 CIV

-against-

COMPLAINT
WITH JURY DEMAND

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER WADDY SANTIAGO, SHIELD 24807 OF
THE 30 POLICE PRECINCT, NEW YORK CITY
POLICE OFFICER GERARDO URBAEZ, SHIELD
2356 OF THE 30 POLICE PRECINCT AND NEW
YORK CITY POLICE OFFICERS JOHN DOE THOSE
OFFICERS INVOLVED IN THE ARREST OF PATRICK
NICHOLS (names and shield numbers of whom are
presently unknown) and other unidentified members of
THE NEW YORK CITY POLICE DEPARTMENT,

Defendants

-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

INTRODUCTION

1. Plaintiff PATRICK NICHOLS brings this action against the City of New York,
New York City Police Department and Police Officers John Doe of the New York City Police
Department for damages arising from violation of Plaintiffs civil rights under color of state
action, Plaintiff's false arrest, false imprisonment, and other unconstitutional policies and

actions, and common law negligence claims arising out of an unlawful arrest, detention and imprisonment by police on May 5, 2014.

BASIS FOR JURISDICTION

2. Plaintiff brings this action against Defendants to redress the deprivation of rights secured him by the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution, 42 U.S.C. sec. 1983, and the common law.

3. Plaintiff is a citizen of New York. Each Defendant is, upon information and belief, a citizen or entity of New York State. The amount in controversy, exclusive of interest, costs, and fees, exceeds \$100,000.00.

4. This Court has jurisdiction over this matter pursuant to 28 U.S.C. secs. 1331, 1332, and 1343(a)(3) and 42 U.S.C. sec.1983.

5. Plaintiff also invokes supplemental jurisdiction of this Court over Plaintiff's state claims against the Defendants for common law violations pursuant to 28 U.S.C sec. 1367 as the common law claims form part of the same case or controversy.

6. Venue is proper in this district pursuant to 28 U.S.C. sec.1391.

PARTIES:

7. Plaintiff PATRICK NICHOLS, ("NICHOLS"): The Plaintiff is a resident of the State of New York.

8. Defendant CITY OF NEW YORK: The Defendant is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, New York, New York.

9. Defendant NEW YORK CITY POLICE DEPARTMENT: The Defendant department is an agency created and maintained by the above municipal government.

10. NEW YORK CITY POLICE OFFICER WADDY SANTIAGO, SHIELD 24807 OF THE 30 POLICE PRECINCT, (“SANTIAGO”) was and at all times relevant herein, an officer, employee and agent of the NEW YORK CITY POLICE DEPARTMENT. He is sued herein in his individual and official capacity.

11. NEW YORK CITY POLICE OFFICER GERARDO URBAEZ, SHIELD 2356 OF THE 30 POLICE PRECINCT, (“URBAEZ”) was and at all times relevant herein, an officer, employee and agent of the NEW YORK CITY POLICE DEPARTMENT. He is sued herein in his individual and official capacity.

12. Defendant NEW YORK CITY POLICE OFFICERS JOHN DOE, THOSE INVOLVED IN THE ARREST OF PATRICK NICHOLS (“DOES”) (names and shield numbers of whom are presently unknown) and other unidentified members of THE NEW YORK CITY POLICE DEPARTMENT (the “Individual Defendants”) are and were at all times relevant herein, officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT. The Individual Defendants are being sued herein in their in their individual and official capacities.

13. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of The New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT at all times relevant herein, with the power and authority vested in them as officers, agents and

employees of THE NEW YORK CITY POLICE DEPARTMENT and incidental to the lawful pursuit of their duties as officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT.

NOTICE OF CLAIM

14. On or about August 15, 2014 notice required by Municipal Law 50-E was given to the City of New York and New York City Police Department, by personal service. Said notice set forth the facts underlying Plaintiff's claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York or New York City Police Department.

STATEMENT OF FACTS

15. On June 23, 2013 at approximately 5:00 AM in the vicinity of West 152 Street and Convent Avenue, New York County, NY Plaintiff was operating a motor vehicle and was struck by another motor vehicle.

16. That SANTIAGO and URBAEZ stopped Plaintiff, handcuffed and arrested him. That at no time was Plaintiff intoxicated while he was operating the motor vehicle.

17. That at no time was Plaintiff intoxicated or impaired while he was operating the motor vehicle.

18. That at no time was Plaintiff operating the motor vehicle in reckless manner.

19. That after Plaintiff was arrested, he was transported to a local New York County police precinct.

20. That after Plaintiff was transported to the local New York County police precinct he was placed into a cell.

21. That while inside of the Midtown South Precinct, Plaintiff was searched and that nothing of an illegal or unlawful nature was found.

22. That after being held in a cell for several hours in the Midtown South Precinct, Plaintiff was removed to New York County Central booking located at 100 Centre Street, New York County, NY.

23. That while at New York County Central Booking, Plaintiff was held in a cell with other males for several hours.

24. That while at New York Central Booking, Plaintiff was subjected to harassment from the other male prisoners.

25. That while at New York Central Booking, Plaintiff was denied access to a working bathroom.

26. That on June 24, 2013, Plaintiff was arraigned in New York County Criminal Court on docket 2013NY049059 charging Operating a Motor Vehicle While Intoxicated, Reckless Endangerment, Reckless Driving and Operating a Motor Vehicle While Impaired.

27. That at the time of the arraignment, Plaintiff was released on his own recognizance.

28. That on and between June 24, 2013 through November 6, 2014, Plaintiff made several court appearances until the case was dismissed upon application of the New York County District Attorney.

29. Upon information and belief, the CITY OF NEW YORK permitted and tolerated the unreasonable detention and wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff by permitting arrests without proper identification.

30. That the CITY OF NEW YORK permitted and tolerated the unreasonable detention of Plaintiff without there being any evidence that Plaintiff committed the offenses charged on the criminal court complaint.

31. The actions and conduct herein further arose from a policy, practice and/or custom, in which defendants, THE CITY OF NEW YORK failed and refused to properly train and supervise police officers with regard to the manner in which they restrict the liberty of law abiding citizens.

32. Defendants' failure to properly train and supervise police officers was and is unreasonable conduct and violative of Plaintiff's civil rights as guaranteed by the New York State and United States Constitution.

33. The actions and conduct herein arose from a policy, practice and/or custom in which CITY OF NEW YORK knew that the manner in which officers under their control and tutelage were violating citizens' rights in a wholesale fashion in increasing frequency.

34. The violation of Plaintiff's civil rights by SANTIAGO, URBAEZ and DOES was far in excess of their rightful authority as NEW YORK CITY POLICE OFFICERS. Those violations on Plaintiff were made without proper cause.

35. The false arrest, false imprisonment and humiliation and embarrassment of Plaintiff by defendants caused plaintiff to sustain pain and suffering and psychological and emotional trauma.

AS AND FOR A FIRST CAUSE OF ACTION

36. Plaintiff repeats all allegations contained in paragraphs "1" through "35" inclusive with the same force and effect as though more fully set forth herein again at length.

37. The defendant's actions as alleged herein were committed under color of law.

38. The actions, conduct and policies, practices and/or customs of defendants as alleged herein violated plaintiff's rights to be free of an unreasonable search and seizure under the Fourth and Fourteenth Amendments to the United States Constitution and to be free of a deprivation of liberty under the Fourteenth Amendment to the United states Constitution and the Civil Rights act of 1871, Title 42 U.S.C. §1983.

39. That Plaintiff was stopped and arrested for no reason whatsoever.

40. That prior to being stopped and arrested, Plaintiff did not engage in any criminal or unlawful conduct.

41. As a result of the acts alleged herein, plaintiff has been damaged in a sum of not less than One Million (\$1,000,000.00) Dollars..

AS AND FOR A SECOND CAUSE OF ACTION

42. Plaintiff repeats all allegations contained in paragraphs "1" through "41" inclusive with the same force and effect as though more fully set forth herein again at length.

43. Defendants, their agents, servants and employees were reckless, incompetent, and negligent and acted unreasonably and in bad faith in their unlawful detention and seizure of Plaintiff.

44. That at no time before Plaintiff was detained and arrested was he ever identified to SERNA, DOES or NEW YORK CITY POLICE OFFICERS as having committed a crime.

45. That Plaintiff was detained and arrested without any legitimate or lawful basis for him to be arrested.

46. That at no time did Plaintiff engage in any criminal or unlawful conduct.

47. Pursuant to 28 U.S.C. §1367, this Court has pendent or supplemental jurisdiction to hear and adjudicate such claims.

48. As a result of defendants' actions, Plaintiff has been damaged in a sum of not less than One Million (\$1,000,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION

49. Plaintiff repeats all allegations contained in paragraphs "1" through "48" inclusive with the same force and effect as though more fully set forth herein again at length.

50. Defendants' acts in the seizing and restraining Plaintiff were willful and malicious with the intent of causing or threatening to cause Plaintiffs bodily harm.

51. Pursuant to 28 U.S.C. §1367, this Court has pendent or supplemental jurisdiction to hear and adjudicate such claims.

52. As a result of defendants' actions, plaintiff has been damaged in a sum of not less than One Million (\$1,000,000.00) Dollars.

AS AND FOR A FOURTH CAUSE OF ACTION

53. Plaintiff repeats all allegations contained in paragraphs "1" through "52" inclusive with the same force and effect as though more fully set forth herein again at length.

54. During the course of defendants' actions, Defendants intentionally and maliciously forcibly restrained and detained plaintiff and prevented his from moving of his own free will.

55. Pursuant to 28 U.S.C. §1367, this Court has pendent or supplemental jurisdiction to hear and adjudicate such claims.

56. As a result of defendants' actions, plaintiff has been damaged in a sum of not less

than One Million (\$1,000,000.00) Dollars.

AS AND FOR A FIFTH CAUSE OF ACTION

57. Plaintiff repeats all allegations contained in paragraphs "1" through "56" inclusive with the same force and effect as though more fully set forth herein again at length.

58. THE CITY OF NEW YORK and its employees, servants and/or agents acting within the scope of their employment did negligently hire, train and supervised defendants SANTIAGO, URBAEZ, DOES and other unidentified members of THE NEW YORK CITY POLICE DEPARTMENT, who were unfit for the performance of police duties on and between June 23, 2013 and November 6, 2014.

59. Pursuant to 28 U.S.C. §1367, this Court has pendent or supplemental jurisdiction to hear and adjudicate such claims.

60. As a result of defendants' actions, plaintiff has been damaged in a sum of not less than One Million (\$1,000,000.00) Dollars.

JURY DEMAND

61. Plaintiff hereby demands trial by jury of all issues properly tribal thereby.

PRAYER FOR RELIEF

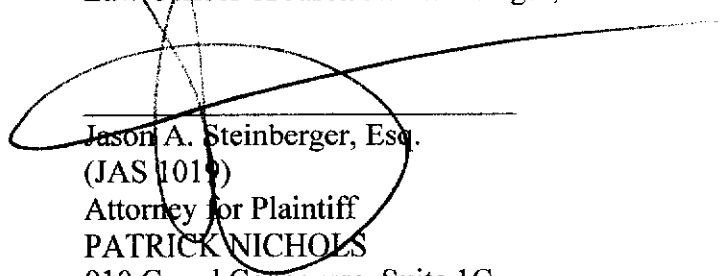
WHEREFORE, Plaintiff prays for relief as follows:

1. This Court issue a declaration that defendants have violated the plaintiff's rights under the Fourth and Fourteenth Amendments of the Constitution of the United States and the Civil Rights act of 1871, Title U.S.C. §1983; and

2. That the jury finds and the Court adjudge and decree that Plaintiff, PATRICK NICHOLS, shall recover compensatory damages in the sum of not less than One Million (\$1,000,000.00) Dollars against all defendants jointly and severally.
3. Order the defendants to pay costs and attorney's fees pursuant to 42 U.S.C. §1983; and
4. Require the Defendants to pay Plaintiff punitive damages; and
5. Order any other relief the Court deems appropriate.

Dated: November 6, 2015

Law Offices of Jason A. Steinberger, LLC



Jason A. Steinberger, Esq.
(JAS 1019)
Attorney for Plaintiff
PATRICK NICHOLS
910 Grand Concourse, Suite 1C
Bronx, NY 10451
(718) 585-2833

Case Number: CIV
UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

PATRICK NICHOLS

Plaintiff

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER WADDY SANTIAGO, SHIELD 24807 OF THE 30 POLICE PRECINCT, NEW YORK CITY POLICE OFFICER GERARDO URBAEZ, SHIELD 2356 OF THE 30 POLICE PRECINCT AND NEW YORK CITY POLICE OFFICERS JOHN DOE THOSE OFFICERS INVOLVED IN THE ARREST OF PATRICK NICHOLS (NAMES AND SHIELD NUMBERS OF WHOM ARE PRESENTLY UNKNOWN) AND OTHER UNIDENTIFIED MEMBERS OF THE NEW YORK CITY POLICE DEPARTMENT

Defendant.

SUMMONS AND COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC
910 Grand Concourse, Suite 1C
Bronx, NY 10451

To:
Attorney (s) for Defendant(s)

Service of a copy of the within _____ is hereby admitted.

Dated: _____
Attorney(s) for

PLEASE TAKE NOTICE

☐ that the within is a (certified) true copy of
☐ entered in the office of the clerk of the within named Court on

**NOTICE
OF ENTRY**

☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.
once of the Judges of the within named Court,

**NOTICE OF
SETTLEMENT** at _____
on _____ 200 , at _____ m.

Dated:

JASON A. STEINBERGER, ESQ.
910 Grand Concourse, Suite 1C
Bronx, NY 10451

To:
Attorney(s) for